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Human Values and the Market: The Case of Life Insurance and Death in 19th-Century America¹

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Qualitative analysis of historical data concerning the diffusion of life insurance in the United States during the 19th century helps to explore the problem of establishing monetary equivalents for those aspects of the social order, such as death, that are culturally defined as above financial relationships. The financial evaluation of a man's life introduced by the life insurance industry was initially rejected by many as a profanation which transformed the sacred event of death into a vulgar commodity. By the latter part of the 19th century, the economic definition of the value of death became finally more acceptable, legitimating the life insurance enterprise. However, the monetary evaluation of death did not desacralize it; life insurance emerged as a new form of ritual with which to face death.

For Durkheim and Simmel, one of the most significant alterations in the moral values of modern society has been the sacralization of the human being, his emergence as the "holy of holies" (Wallwork 1972, p. 145; Simmel 1900). In his *Philosophie des Geldes*, Simmel (1900) traces the transition from a belief system that condoned the monetary evaluation of life to the Judeo-Christian conception of the absolute value of man, a conception that sets life above financial considerations. The early utilitarian criterion was reflected in social arrangements, such as slavery, marriage by purchase, and the *wergeld* or blood money. The rise of individualism was the determining factor in the transition. "The tendency of money to strive after ever-growing indifference and mere quantitative significance coincides with the ever-growing differentiation of men . . . and thus money becomes less and less adequate to personal values" (Altmann 1903, p. 58).² For Simmel, money the equalizer became money the profaner. Considered "sub specie pecuniae," the uniqueness and dignity of human life vanished.

Only small fragments of Simmel's penetrating analysis of personal and

¹ I am deeply grateful for the generous advice and support of Professors Sigmund Diamond and Bernard Barber. I also want to thank Professor Irving Louis Horowitz for his help, and an anonymous reviewer of the *American Journal of Sociology* for very useful suggestions.

² Parsons and Lidz (1967, p. 163) also attach the conception of the sanctity of life to the stress on individualism.

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monetary values have been translated, and, with a few exceptions, this work has been ignored in the sociological literature.³ There has been much generalizing about the “cash nexus” but, strangely, very little work on the area. The problem of establishing monetary equivalences for such things as death, life, human organs, and generally ritualized items or behavior considered sacred and, therefore, beyond the pale of monetary definition is as intriguing as it is understudied. Perhaps the absorption of many social scientists with “market” models and the notion of economic man led them and others to disregard certain complexities in the interaction between the market and human values.⁴ Market exchange, although perfectly compatible with the modern values of efficiency and equality, conflicts with human values which defy its impersonal, rational, and economizing influence. Titmuss’s imaginative cross-national comparison of voluntary and commercial systems of providing human blood for transfusions stands as a lone effort to consider this conflict in depth. His study suggests that commercial systems of distributing blood are not only less efficient than voluntary blood donation but also, and more important, morally unacceptable and dangerous to the social order. Transform blood into a commercial commodity, argues Titmuss, and soon it will become “morally acceptable for a myriad of other human activities and relationships also to exchange for dollars and pounds” (1971, p. 198).⁵ Dissatisfied with the consequences of market exchange, Titmuss is persuaded that only reciprocal or gift forms of exchange are suitable for certain items or activities: among others, blood transfusions, organ transplants, foster care, and participation in medical experimentation. His resistance to the laws of the marketplace is not unique. In his early writings, Marx was already concerned with the dehumanizing impact of money. In *The Economic and Philosophic Manuscripts* Marx deplored the fact that in bourgeois society human life is easily reduced to a mere salable commodity; he pointed to prostitution and the sale of persons which flourished in his time as ultimate examples of this degrading process (1964, p. 151).⁶ Similarly, Blau, despite his predominantly “market” model of social behavior, states that “by supplying goods that moral standards define as invaluable for a price in the market, individuals prostitute themselves and destroy the cen-

³ For English versions of some portions of the book, see Becker (1959), Altmann (1903), Levine (1971), Lawrence (1976), and Etzkorn (1968).

⁴ On the “absolutization” of the market as an analytical tool for social analysis in most social science disciplines, and for a discussion of the types and functions of different forms of economic and social exchange, see Barber (1974).

⁵ According to a recent report, the nation appears to be shifting toward almost total reliance on volunteer, nonpaid donors (*New York Times*, June 19, 1977).

⁶ See also the *Manifesto of the Communist Party* (Marx 1971, p. 11). Above all, money for Marx (1964, pp. 165–69) destroys individuality by enabling its possessor to achieve objects and qualities which bear no connection to individual talents or capacities.

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tral value of what they have to offer” (1967, p. 63). Using love and salvation as examples, Blau suggests that pricing intangible spiritual benefits inevitably leaves some unwholesome by-product; not love but prostitution, not spiritual blessing but simony.⁷ The marketing of human organs presents a similar dilemma. Significantly, while organ donations have become more common, organ sales are still rare.⁸ Parsons, Fox, and Lidz note that “regardless of how scientific the setting in which this transaction occurs may be, or how secularized the beliefs of those who take part in it, deep religious elements . . . are at least latently present in the transplant situation” (1973, p. 46). Likewise, even after the repeal of most prohibitions against the sale of corpses, the majority of medical schools still obtain corpses and cadavers through individual donations and unclaimed bodies from the morgue. People refuse to sell their bodies for “ethical, religious or sentimental reasons” (“Tax Consequences of Transfers of Bodily Parts,” 1973, pp. 862–63). The law itself remains ambivalent. While the Uniform Anatomical Gift Act permits the gift of one’s body or organs after death, “the state of the law on anatomical sales remains in a flux” (“Tax Consequences of Transfers of Bodily Parts,” 1973, p. 854).

This paper uses data concerning the diffusion of life insurance in 19th-century America as a testing ground to explore the larger theoretical problem of establishing monetary equivalences for sacred things. Our hypothesis is that cultural resistance to including certain items in the social order—namely, those related to human life, death, and emotions—into a market-type of exchange introduces structural sources of strain and ambivalence into their marketing. Life insurance raises the issue in its sharpest terms by posing the question of how one establishes a fixed-dollar amount for any individual death.

Life insurance was part of a general movement to rationalize and formalize the management of death that began in the early part of the 19th century. In the 18th century, the widow and her orphans were assisted by their neighbors and relatives as well as by mutual aid groups that ministered to the economic hardships of the bereaved. In the 19th century, the financial protection of American families became a purchasable commodity. Trust

⁷ Cooley formulated another, different perspective on the “moral problem” created by the fact that “pecuniary values fail to express the higher life of society.” Although he accepted the fact that human values such as love, beauty, and righteousness were not traditional market commodities, Cooley rejected the permanent segregation of pecuniary values into a special, inferior province of life. His alternative was the enhancement of monetary evaluation; precisely by encouraging “the translation into it of the higher values . . . the principle that everything has its price should be rather enlarged than restricted” (1913, pp. 202–3).

⁸ A recent policy-oriented analysis of organ transplants concludes that “if the body is to be made available to others for personal or societal research, it must be a gift” (Veatch 1976, p. 269).

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companies, like life insurance companies, replaced more informal systems with professional management (White 1955). The funeral was another “family and neighborhood” affair that became a business. Previously, the physical care and disposal of the dead had been provided mostly by neighbors and relatives, but in the 19th century it became a financially rewarded occupational specialty (Bowman 1959; Habenstein and Lamers 1955). The process of formalization extended to the drafting of wills. The largely informal, generalized provisions drafted by a man shortly before his death turned into a highly structured system of estate planning in the 19th century (Friedman 1964).

The new institutions were primarily concerned with death as a major financial episode. Their business was to make people plan and discuss death in monetary terms. Life insurance defined itself as “the capitalization of affection. . . . Tears are nothing but salt water, to preserve a fresh grief. Insurance is business, genuine, old-fashioned sixteen-ounce precaution” (Phelps 1895, pp. 12–13). Its avowed goal was to encourage men to “make their own death the basis of commercial action” (Beecher 1870). This was no simple enterprise. Putting death on the market offended a system of values that upheld the sanctity of human life and its incommensurability. It defied a powerful normative pattern: the division between the nonmarketable and the marketable, or between the sacred and the profane. Durkheim has written, “The mind irresistibly refuses to allow the two [sacred and profane] . . . to be confounded or even merely to be put into contact with each other . . .” (1965, p. 55). Sacred things are distinguished by the fact that men will not treat them in a calculating, utilitarian manner.

I will argue that resistance to life insurance in this country during the earlier part of the 19th century was largely the result of a value system that condemned the materialistic assessment of death, and of the power of magical beliefs and superstitions that viewed with apprehension any commercial pacts dependent on death for their fulfillment. By the latter part of the 19th century, the economic definition of the value of death became finally more acceptable, legitimating the life insurance enterprise. However, our data suggest that the monetary evaluation of death did not desacralize it; far from “profaning” life and death, money became ritualized by its association with them. Life insurance took on symbolic values quite distinct from its utilitarian function, emerging as a new form of ritual with which to face death and a processing of the dead by those kin left behind.

The present study is based on a qualitative analysis of historical documentary sources. The attempt was made to include an extensive and diversified set of different kinds of data. Among the primary sources consulted were advertising booklets published by life insurance companies, insurance journals and magazines, early treatises and textbooks on insurance, life insurance agents’ manuals and their memoirs. Although these sources repre-

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sent predominantly the life insurance industry and not its customers, they provide important indicators of public opinion. For instance, the most prevalent objections against life insurance were repeatedly discussed and carefully answered by contemporary advertising copy. Primary sources outside the life insurance industry were consulted as well, among them 19th-century business periodicals and general magazines, widows' and marriage manuals, booklets written by critics of life insurance, and a series of government documents.

A BRIEF BACKGROUND

The first life insurance organizations in the United States were formed during the latter years of the 18th century to assuage the economic distress of the widows and orphans of low-paid Presbyterian and Episcopalian ministers. The idea soon appealed to the secular community, and by the early decades of the 19th century several companies had optimistically undertaken the business of insuring life. Legislatures were encouraging; special charters for the organization of the new companies were granted rapidly and eagerly by many states. Life insurance seemed the perfect solution to the increasing economic destitution of widows and orphans. The public, however, did not respond. Surprised and dismayed by their failure, many pioneering companies withdrew altogether or else turned to other businesses to compensate for their losses in life insurance. The contrasting success of savings banks and trust companies, as well as the prosperity of fire and marine insurance companies, attests to the fact that there was sufficient disposable income among the population at the beginning of the 19th century. In addition, the early companies offered a solid economic organization; no life insurance company failed before the 1850s. Epidemics and high mortality rates did not affect their stability; actuarial knowledge was sufficient to calculate adequate premium rates. Americans were offered sound policies which they needed and could well afford. They did not, however, want them.

After the 1840s there was a drastic reversal of trends, and life insurance began its fantastic history of financial success, becoming firmly established in the 1870s. Its sudden prosperity has puzzled insurance historians as much as the initial failure of the industry. The new companies were offering the same product; neither rates nor conditions of life insurance policies were significantly improved. Most analysts point to America's stage of economic growth as the major clue to the acceptance of life insurance. The great economic expansion that began in the 1840s and reached its peak in the 1860s explains the boom of life insurance at that time. The increased urbanization of mid-century America is also upheld as an explanation. Urban dependance on daily wages has been particularly linked to the growing acceptance of life insurance. Indeed, the acceleration of urbanization

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coincided in many states with the growth of life insurance. The percentage of people living in urban areas doubled between 1840 and 1860, with the greatest increase occurring in New York and Philadelphia, two cities in leading insurance states. The first life insurance companies were all organized in such heavily populated cities as New York, Philadelphia, Boston, and Baltimore.⁹

Other insurance historians, notably Stalson (1969), argue that the “rags-to-riches” transformation of life insurance in mid-century can be attributed unequivocally to the adoption of aggressive marketing techniques. Pioneer American life insurance companies used no agents, limiting themselves to passive marketing tactics such as discreet announcement advertisements. In the 1840s, the new companies introduced person-to-person solicitation by thousands of active, high-pressure salesmen who went into the homes and offices of prospective customers. Marketing systems, however, do not develop in a sociological vacuum. Their structure and characteristics are deeply interrelated with such other variables as customers’ social and cultural backgrounds. The struggles and victories of life insurance have remained enigmatic and misunderstood because existing interpretations systematically overlook the noneconomic factors involved in its acceptance and adoption. Indeed, economists and economic historians monopolize the field, while sociologists for the most part have ignored it.¹⁰

In the first place, the development of the insurance industry reflects the struggle between fundamentalist and modernistic religious outlooks that worked itself out in the 19th century. Contrasting theological perspectives divided the clergy into opposing groups; there were those who denounced life insurance to their congregations as a secular and sacrilegious device that competed against God in caring for the welfare of widows and orphans. Others, more attuned to the entrepreneurial spirit, supported the industry. The cultural incompatibility of life insurance with literalist and fundamentalist beliefs hindered its development during the first part of the century. In opposition, the emerging liberal theology tended to legitimate the enterprise. Religious liberals supported insurance programs for practical considerations as well. Congregations which had been unwilling to raise the meager salaries of their underpaid pastors and ministers were most easily persuaded to pay the relatively small premiums to insure the life of the clergymen.

Changing ideologies of risk and speculation also influenced the develop-

⁹ On the impact of economic growth and urbanization on the development of life insurance, see, among others, Buley (1967), North and Davis (1971), and Mannes (1932).

¹⁰ There are a few exceptions. See, e.g., Riley (1963). An entire issue of the *American Behavior Scientist* (May 1963) was devoted to social research and life insurance. Two doctoral dissertations have been written on the life insurance agent (Taylor 1958; Bain 1959).

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ment of life insurance. Many practices considered to be deviant speculative ventures by a traditional economic morality were redeemed and transformed into legitimate, even noble investments by a different entrepreneurial ethos. Much of the opposition to life insurance resulted from the apparently speculative nature of the enterprise; the insured were seen as “betting” with their lives against the company. The instant wealth reaped by a widow who cashed her policy seemed suspiciously similar to the proceeds of a winning lottery ticket. Traditionalists upheld savings banks as a more honorable economic institution than life insurance because money was accumulated gradually and soberly. After the 1870s, as the notions of economic risk and rational speculation grew progressively more acceptable, the slower methods of achieving wealth lost some of their luster, and life insurance gained prominence and moral respectability.

The emergence of life insurance is also clearly tied to functional changes in the family system which resulted from urbanization. The urban family could no longer rely on informal, personal social arrangements in times of crisis. The care of widows and orphans, previously the responsibility of the community, became the obligation of the nuclear family with the assistance of formal, impersonal, bureaucratic mechanisms and paid professionals. Life insurance was the institutional response to the uncertain social and economic situation of a new commercial middle class without property and dependent exclusively on the money income of the father. Nineteenth-century writings clearly reflect the prevalent fear among businessmen of failure and downward mobility, if not for themselves, for their children.¹¹

Finally, changing attitudes toward death made a major impact on the development of life insurance. Life insurance clashed with a value system that rejected any monetary evaluation of human life. However, by the latter part of the 19th century, a growing awareness of the economic value of death legitimated the life insurance business.

PROFANE MONEY

The resistance to evaluating human beings in monetary terms is among the major cultural factors either ignored by life insurance analysts or else dismissed in their historical accounts as a curious but certainly peripheral issue. Yet its centrality in Western culture is hardly disputable. Cultural aversion to treating life and death as commercial items is reflected in legal attempts to safeguard them from economic valuation. Roman law had early established the doctrine: *Liberum corpus nullam recipit aestimationem* (the life of a free man can have no monetary estimate) (Goupil 1905, pp. 32–

¹¹ On the fear of failure among 19th-century businessmen, see Katz (1975). For a fuller explanation of the cultural and sociostructural factors involved in the adoption of life insurance, see Zelizer (1979).

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33).¹² Successorial contracts were considered “*stipulationes odiosae*” and “*contra bonos mores*” because they surrounded death with financial considerations. Roman tradition was perpetuated in many countries, particularly in France, where the Civil Code ruled that “only things belonging to commerce can be the subject of a contract” (Pascan 1907, p. 2). Declaring that a man’s life “cannot be the subject of commercial speculation,” French jurists prohibited any contract on the lives of persons, such as life insurance, trusts, and successorial contracts. Wills, sufficiently surrounded by religious symbolism to remain untainted by commercial aspirations, remained the only legitimate vehicle to dispose of property after death (Goupil 1905, p. 139).

In the United States, the utilitarian treatment of human lives poses similar problems. American law protects human life from commerce, declaring that the human body is not property and may not be “bargained for, bartered or sold” (Schultz 1930, p. 5). Many social arrangements, regardless of their economic efficiency, have been condemned as offensive to the sacred qualities of life. Life insurance became the first large-scale enterprise in America to base its entire organization on the accurate estimate of the price of death. It was necessary to know the cost of death in order to establish adequate policy benefits and determine premiums. The economic evaluation of human life was a delicate matter which met with stubborn resistance. Particularly, although not exclusively, during the first half of the 19th century, life insurance was felt to be sacrilegious because its ultimate function was to compensate the loss of a father and a husband with a check to his widow and orphans. Critics objected that this turned man’s sacred life into an “article of merchandise” (Albree 1870, p. 18). They asked, “Has a man the right to make the continuance of his life the basis of a bargain? Is it not turning a very solemn thing into a mere commercial transaction?” (Beecher 1870). Mennonites, who went to the extreme of excommunicating any member who insured his life, cited similar reasons: “It is equivalent to merchandising in human life; it is putting a monetary price on human life which is considered unscriptural since man is the ‘temple of the Holy Ghost’ ” (*Mennonite Encyclopedia* 1957, p. 343). Life insurance benefits, however profitable, became “dirty money” (Knapp 1851).

MAGICAL MONEY

Whal notes the “remarkable paradox of an almost universal recourse to magic and irrationality” to handle death even among the most firm believers in science and the scientific method (1959, p. 17). But while examples of

¹² Only slaves were considered to have pecuniary value. This explains why countries that forbade life insurance in principle allowed the insurance of slaves. Their lack of human value justified economic equivalences without presenting serious moral difficulties (Reboul 1909, p. 23).

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the relationship of magic to death in less-developed cultures are easily found (see Malinowski 1954; Habenstein and Lamers 1955; Simmons 1945; Blauner 1966), little is known about contemporary magic rituals.

For instance, few people make plans for their own death, largely because of magical fears that to do so will hasten it. **Most wills are drafted shortly before death (Dunham 1963). Likewise, people rarely prearrange their own funerals despite the evidence that this reduces expenses considerably (Simmons 1975).**

Its commercial intimacy with death made life insurance vulnerable to objections based on magical reasoning. A New York Life Insurance Co. newsletter (1869, p. 3) referred to the “secret fear” many customers were reluctant to confess: “the mysterious connection between insuring life and losing life.” The lists compiled by insurance companies in an effort to respond to criticism quoted their customers’ apprehensions about insuring their lives: “I have a dread of it, a superstition that I may die the sooner” (*United States Insurance Gazette* [November 1859], p. 19). Responding to the popular suspicion that life insurance would “hasten the event about which it calculates,” Jencks urged the necessity to “disabuse the public mind of such nonsense” (1843, p. 111). However, as late as the 1870s, “the old feeling that by taking out an insurance policy we do somehow challenge an interview with the ‘king of terrors’ still reigns in full force in many circles” (*Duty and Prejudice* 1870, p. 3).

Insurance publications were forced to reply to these superstitious fears. They reassured their customers that “life insurance cannot affect the fact of one’s death at an appointed time” (*Duty and Prejudice* 1870, p. 3). Sometimes they answered one magical fear with another, suggesting that not to insure was “inviting the vengeance of Providence” (Pompilly 1869). The audience for much of this literature was women. It is one of the paradoxes in the history of life insurance that women, intended to be the chief beneficiaries of the new system, became instead its most stubborn enemies. An Equitable Life Assurance booklet quoted wives’ most prevalent objections: “Every cent of it would seem to me to be the price of your life. . . . It would make me miserable to think that I were to receive money by your death. . . . It seems to me that if [you] were to take a policy [you] would be brought home dead the next day” (June 1867, p. 3).

Thus, as a result of its commercial involvement with death, life insurance was forced to grapple with magic and superstition, issues supposedly remote from the kind of rational economic organization it represented.

SACRED MONEY

Until the late 19th century, life insurance shunned economic terminology, surrounding itself with religious symbolism and advertising more its moral

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value than its monetary benefits. Life insurance was marketed as an altruistic, self-denying gift rather than as a profitable investment. Most life insurance writers of this period denied the economic implications of their enterprise: "The term life insurance is a misnomer . . . it implies a value put on human life. But that is not our province. We recognize that life is intrinsically sacred and immeasurable, that it stands socially, morally, and religiously above all possible evaluation" (Hölwig 1856, p. 4).

Later in the 19th century, the economic value of human life finally became a less embarrassing topic in insurance circles. The *United States Insurance Gazette* could suggest, "The life of every man has a value; not merely a moral value weighed in the scale of social affection and family ties but a value which may be measured in money" (May 1868, p. 2).¹³ The Rev. Henry Ward Beecher (1870, p. 2) urged men to make their death "the basis of commercial action." The process of introducing the economic value of human life culminated in 1924 when the concept was formally presented at the annual convention of life underwriters: "The most important new development in economic thought will be the recognition of the economic value of human life. . . . I confidently believe that the time is not far distant when . . . we shall apply to the economic organization, management and conservation of life values the same scientific treatment that we now use in connection with property" (Huebner 1924, p. 18).

Death was redefined by the new economic terminology as "all events ending the human life earning capacity" (Huebner 1929, p. 22). It was neatly categorized into premature death, casket death, living death (disability), and economic death (retirement). From this perspective, disease was the "depreciation of life values" (Dublin and Lotka 1930, p. 112) and premature death an unnecessary waste of money. In 1930, Dublin and Lotka developed the first estimate of capital values of males as a function of their age. By establishing differential financial values for lives, they also set a new criterion for stratifying them. Exceptional lives were those that made the greatest contributions, while substandard lives burdened their communities with financial loss (Dublin and Lotka 1930, pp. 80–82). It

¹³ The greater acceptance of the economic value of a man's life did not include women. The *Insurance Monitor*, among others, was outspoken against insuring wives for the benefit of husbands: "The husband who can deliberately set a money value upon his wife, is so far destitute not only of affection for her, but of respect for himself. . . . To him she is but a chattel . . ." ("The Insurable Value of a Wife" [September 1870], p. 712d). The insurance of children was similarly opposed by many individuals and organizations who objected to the economic evaluation of a child's life. In the 1870s, industrial insurance companies began insuring the poor. For the first time children under 10 years of age were insured on a regular basis. There were at least 70 legislative attempts in various states to prohibit it as being against public policy and the public interest. The *Boston Evening Transcript* reflected their prevalent feeling that "no manly man and no womanly woman should be ready to say that their infants have pecuniary value" (March 14, 1895).

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is claimed that the rational-utilitarian approach to death typified by life insurance has deritualized and secularized death (Vernon 1970; Gorer 1965). Death, however, is not tamed easily. Keener observers deny the hypothesis of deritualization and see instead the secularization of religious ritual (Faunce and Fulton 1957; Pine and Phillips 1970; Blauner 1966). This “metamorphosis of the sacred” (Brown 1959, p. 253) does not exempt ritual but changes its nature. The dead can be mourned in very different ways. Paradoxically, money that corrupts can also redeem: dollars can substitute for prayers.

Brown (1959) criticizes traditional sociology for perpetuating a secular and rational image of money without paying due attention to its symbolic and sacred functions (pp. 239–48). There is a dual relationship between money and death, actual or symbolic. While establishing an exact monetary equivalence for human life represents a profanation of the sacred, the symbolic, unrestrained use of money may contribute to the sanctification of death. Durkheim briefly dwells on the sacred qualities of money: “Economic value is a sort of power of efficacy and we know the religious origins of the idea of power. Also richness confers mana, therefore it has it. Hence, it is seen that the ideas of economic value and of religious value are not without connection” (1965, p. 466). The widespread practice of spending large sums of money at times of death testifies to the existence of a powerful and legitimate symbolic association between money and death. Expensive funerals are held without regard to the financial position of the deceased (Dunham 1963). Accusing fingers point routinely at the undertakers, blaming unreasonable expenses on their exorbitant prices (Mitford 1963; Harmer 1963). Historical evidence, however, shows that high expenditures at the time of death preceded the rise of the professional undertaker in the 19th century. Habenstein and Lamers describe the “wanton lavishness” of 18th century funerals, when gloves, scarves, and all kinds of expensive gifts were distributed (1955, p. 203). The symbolic ties between money and death are also revealed by the norm that proscribes bargaining at times of death (Simmons 1975). Comparison shopping for funerals is strictly taboo, even though it reduces costs. Similarly, in the case of life insurance, “to count our pennies is tempting the Gods to blast us” (Gollin 1969, p. 210). Parsons and Lidz suggest that spending large sums of money may be an attempt to affect “the ultimate well being, or even the salvation of the deceased soul” (1967, p. 156).

When it comes to death, money transcends its exchange value and incorporates symbolic meanings. The dual relationship between money and death—actual as well as symbolic—is essential to the understanding of the development of life insurance. Sacrilegious because it equated cash with life, life insurance became on the other hand a legitimate vehicle for the symbolic use of money at the time of death. We will briefly examine three dif-

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ferent aspects of the ritualization of life insurance: its emergence as a secular ritual, as an additional requirement for a "good death", and as a form of immortality.

LIFE INSURANCE AS RITUAL

Funeral expenditures have been defined as a secular ritual (Pine and Phillips 1970, p. 138; Bowman 1959, p. 118).¹⁴ Our evidence suggests that life insurance became another one. Curiously, its critics and not its proponents have been particularly sensitive to the ritualistic overtones of life insurance. Among others, Welsh claims that life insurance is a way of coming to terms with death not only financially but also emotionally and religiously (1963, p. 1576).

The view of life insurance as ritual can be substantiated with firmer evidence. From the 1830s to the 1870s life insurance companies explicitly justified their enterprise and based their sales appeal on the quasi-religious nature of their product. Far more than an investment, life insurance was a "protective shield" over the dying, and a consolation "next to that of religion itself" (Holwig 1886, p. 22). The noneconomic functions of a policy were extensive: "It can alleviate the pangs of the bereaved, cheer the heart of the widow and dry the orphans' tears. Yes, it will shed the halo of glory around the memory of him who has been gathered to the bosom of his Father and God" (Franklin 1860, p. 34).

LIFE INSURANCE AND THE "GOOD DEATH"

Most societies have some conception of what constitutes an appropriate death, whether that means dying on a battlefield or while working at a desk. A "triumphant" death in pre-Civil War America meant a holy death; it involved spiritual transportation and the "triumph" of the faith (Saum 1975). Religiosity and moral generosity alone, however, soon became dysfunctional to a changed social context. In the 18th and early 19th centuries, widows and orphans had generally inherited sufficient land to live on and support themselves. Urbanization changed this, making families exclusively dependent on the father's wage. If he did not assume responsibility for the economic welfare of his wife and children after his death, society would have to support them. The principle of testamentary freedom in American law exempted men from any legal obligation to their children after death. Moral suasion, therefore, had to substitute for legal coercion. It was crucial to instill in men a norm of personal financial responsibility

¹⁴ Ariès (1975) sees the contemporary American funeral rite as a compromise between deritualization and traditional forms of mourning. Group therapy and family reunions have also been suggested as secular rituals (Patterson 1975).

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toward their families that did not stop with death. More and more a good death meant the wise and generous economic provision of dependents. A man was judged posthumously by his financial foresight as much as by his spiritual qualities. Only the careless father left “naught behind him but the memory of honest, earnest work and the hopeless wish that loved ones . . . might somehow find their needed shelter from poverty. . . .” (*Insurance Journal*, October 1882, p. 313). Diamond (1955) and Goody (1962) point out how attitudes toward death and the dead serve as efficient mechanisms for controlling the behavior of the living. Newspaper obituaries or clergymen’s eulogies, for instance, remind the living what behavior is sanctioned by a particular social system. The public reformulation of social norms after a man’s death reaffirms their value for the living. Life insurance writings referred to the new standards of dying in America: “The necessity that exists for every head of family to make proper provision for the sustenance of those dear to him after his death, is freely acknowledged and there is no contingency whereby a man stand excused from making such a provision” (*Life Insurance*, journal of the Manhattan Life Insurance Co., 1852, p. 19).

As an efficient mechanism to ensure the economic provision of dependents, life insurance gradually came to be counted among the duties of a good and responsible father. As one mid-century advocate of life insurance put it, the man who dies insured and “with soul sanctified by the deed, wings his way up to the realms of the just, and is gone where the good husbands and the good fathers go” (Knapp 1851, p. 226). Economic standards were endorsed by religious leaders such as Rev. Henry Ward Beecher, who pointed out, “Once the question was: can a Christian man rightfully seek Life Assurance? That day is passed. Now the question is: can a Christian man justify himself in neglecting such a duty?” (1870). The new criteria for a “good death” emerge from this excerpt from a sermon delivered in the 1880s:

I call to your attention Paul’s comparison. Here is one man who through neglect fails to support his family while he lives or after he dies. Here is another who abhors the Scriptures and rejects God. . . . Paul says that a man who neglects to care for his household is more obnoxious than a man who rejects the Scriptures. . . . When men think of their death they are apt to think of it only in connection with their spiritual welfare. . . . It is meanly selfish for you to be so absorbed in heaven . . . that you forget what is to become of your wife and children after you are dead. . . . It is a mean thing for you to go up to Heaven while they go into the poor-house. [T. DeWitt Talmage, quoted in Hull 1964, p. 240]

LIFE INSURANCE AND ECONOMIC IMMORTALITY

Theological concern with personal immortality was replaced in the 19th century by a growing concern with posterity and the social forms of immor-

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tality. Carl Becker (1932) points out that as early as the 18th century European *philosophes* replaced the Christian promise of immortality in the afterworld with the belief that good men would live in the memory of future generations. This shift was reflected in the changing nature of wills. Earlier wills were concerned primarily with the spiritual salvation of the dying. The testator regulated all the details of his burial, assuring his chances of salvation by donations to the poor who would pray for his soul and by funding hundreds of thousands of masses and religious services in his honor, often in perpetuity (Vovelle 1974). After the mid-18th century, wills were no longer concerned with matters of personal salvation; they became lay instruments for the distribution of property among descendants. Vovelle attributes the change in wills to the “de-Christianization” and deritualization of attitudes toward death in the mid-18th century. It is likely, however, that the new format of wills was less the reflection of a loss of religious belief than an indicator of a new set of ideas and beliefs on immortality.¹⁵ Feifel describes the transition in America: “When we gave up the old ideas of personal immortality through an afterlife we created the idea of social immortality. It meant that I could not live on but I would live on [*sic*] my children” (1974, p. 34). The Puritan concern with individual salvation was pushed aside by the new emphasis on posterity. Men became preoccupied less with their souls and more with leaving an estate for their heirs. The concern with social immortality interacted with structural pressures generated by new economic conditions and the process of urbanization. The multiplication of people with no more capital than their personal incomes made the economic future of their children painfully precarious. The premature death of the breadwinner spelled economic disaster to his widow and orphans. The new institutions that specialized in the economic consequences of death, such as life insurance and trusts, responded to that economic plight by serving the practical needs of dependents. However, they went beyond mere functionality by also symbolizing a form of economic immortality.

The appeal of life insurance as a pathway to immortality was early recognized by the insurance companies, which used it very explicitly to attract their customers. Life insurance was described as “the unseen hand of the provident father reaching forth from the grave and still nourishing his offspring and keeping together the group” (United States Life Insurance Co. booklet, 1850, p. 5). The idea of rewards and punishments after death also served to reinforce the father’s responsibility for his widow and orphans.

¹⁵ Ariès’s interpretation of Vovelle’s data may have some bearing on this hypothesis. Ariès uses the rise of the family and of new family relationships based on feelings and affection in the mid-18th century to explain the change in wills. The dying person no longer used legal means to regulate the rituals of his burial because he now trusted his family to remember him voluntarily (1974, pp. 64–65). The growing importance of family ties may have encouraged religious belief in posterity and social forms of immortality.

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Goody suggests that the belief in afterworld retribution, like other supernatural beliefs, reinforces the system of social control over the living by placing it beyond human questioning (1962, pp. 375–78). The uninsured could anticipate an uneasy afterlife. The dead also assumed a more active role than in the past; there was a shift from “service to serving” (Goody 1975, p. 4). They were no longer the passive recipients of their survivors’ prayers; it was soon recognized that “the desire to outlive life in active beneficence is the common motive to which [life insurance] appeals” (Tyng 1881, p. 4).

CONCLUSION

My concern in this paper goes beyond a historical narrative of life insurance. Using previously unanalyzed aspects of that history, I explore the more general problem of establishing monetary equivalents for relations or processes which are defined as being beyond material concerns, a problem of long-standing interest in sociological thought. With life insurance, man and money, the sacred and the profane, were thrown together; the value of man became measurable by money. The purely quantitative conception of human beings was acceptable in primitive society where only the gods belonged to the sacred sphere while men remained part of the profane world. The growth of individualism resulted in a new respect for the infinite worth of human personality, displacing the earlier utilitarianism with an absolute valuation of human beings. In an increasingly industrialized market economy dominated by the “cash nexus,” human life and human feelings were culturally segregated into their separate, incommensurable realm. Life insurance threatened the sanctity of life by pricing it. In the earlier part of the 19th century, the American public was not ready to commercialize death. Life insurance was rejected as a sacrilegious enterprise.

The task of converting human life and death into commodities is highly complex, creating inescapable sources of structural ambivalence in any enterprise that deals commercially with such sacred “products.” Business demands profits for survival, yet profits alone remain a justification too base for an institution of its kind. I suggest that one solution, in the case of life insurance, was its “sacralization”; the transformation of the monetary evaluation of death into a ritual. Death yielded to the capitalist ethos—but not without compelling the latter to disguise its materialist mission in spiritual garb. For instance, life insurance assumed the role of a secular ritual and introduced new notions of immortality that emphasized remembrance through money. A “good death” was no longer defined only on moral grounds; the inclusion of a life policy made financial foresight another prerequisite. One finds, in addition to religious legitimation, attempts at moral and social legitimation of the industry. The public was assured that marketing death served the lofty social purpose of combating poverty, thereby

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reducing crime. At the individual level, there were moral rewards for the selfless and altruistic insurance buyer.

This religious, moral, and social legitimation was also true of American business in general until the 1870s. Sanford (1958) refers to the “psychic” factor of moral justification which distinguished America’s industrial pioneers from their European counterparts. American industry was not justified by profits alone but as an agency of moral and spiritual uplift. Business was seen to serve God, character, and culture.¹⁶ But if profit alone was an unacceptable motivation for most commercial enterprises, it was a particularly unseemly justification for a business, like life insurance, that dealt with human life and death. Indeed, by the latter part of the 19th century, when American business felt sufficiently confident to seek no other justification than the wealth it produced, life insurance still retained part of its religious camouflage. Even some of the most hard-bitten business leaders of the industry slipped into sentimentalism in speaking of life insurance as a “conviction first and then a business” (Kingsley 1911, p. 13).

We do not suggest that ingenious sales pitches alone were responsible for the adoption of life insurance. Its newly acquired legitimate status by the latter part of the 19th century was the result of profound economic, social, and cultural changes in America. Marketing techniques, however, can be useful indirect indicators of cultural values. In the case of life insurance, its earlier moralistic appeal reflected the powerful ideological resistance to commercializing death. As the economic definition of death became finally more acceptable by the latter part of the 19th century, life insurance could afford a more direct business-like approach to death without, however, fully discarding its ritualistic appeal. The pivotal role of the life insurance agent further confirms the cultural struggle of the industry. Life insurance sales began to improve in the 1840s when companies introduced personal solicitation. In sharp contrast to life policies, marine and fire insurance sold with only minor participation of agents. Customers who would not insure their lives unless pursued sought voluntarily the protection of their homes and ships. The distinctive role of the agent in life insurance was not simply an ingenious marketing device. It was a response to powerful client resistance. From the data available it is safe to hypothesize that the adoption of life insurance would have been much slower and far less successful without the agency system. Persuasive and persistent personal solicitation alone could break through the ideological and superstitious barriers against insuring life.¹⁷ Indeed, historical evidence clearly attests to the failure of all experi-

¹⁶ The accumulation of great fortunes was justified by the ultimate social and philanthropic purposes to which the money was put (Diamond 1955, pp. 13–15). On this subject, see also Hofstadter (1963, p. 251).

¹⁷ For the impact of personal influence on the diffusion of innovations, see Rogers and Shoemaker (1971); on marketing, see Katz and Lazarsfeld (1955).

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ments to sell life insurance directly in this country and abroad.¹⁸ The agent was indispensable. His role, however, was ambiguous. The dilemma of marketing life was again evident in the ambivalent role definition of agents. Death could not be pushed and promoted as a common ware. Official rhetoric urged agents to remain above materialistic concerns, performing their task with the spiritual devotion of a missionary. The rewards, however, went to the successful salesman who solicited the most policies.

Other “businessmen” of death are caught in the same structural ambivalence as life insurance. To undertakers, as to life insurance salesmen, death is a money-making business. As “businessmen” of death they are differentiated from the “professionals” of death, physicians and clergymen, whose connection to death is made legitimate by their service orientation.¹⁹ Parsons (1949) and Merton (1975) distinguish between individual motivational patterns and the institutional structures of business and the professions. Regardless of the individual motivations of the practitioners—their greed or beneficence—professions institutionalize altruism while businesses institutionalize self-interest. Particularly when it comes to death, to save and to heal is holier than to sell. The powerful normative stigma of the utilitarian association of money with death results in a negative evaluation of those involved in making money out of death. In sum, marketing death is what Hughes has instructively called “dirty work” (1958, pp. 49–52). As with life insurers, undertakers attempt to legitimate their business by transforming it into a sacred ritual. Warner describes the tendency on the part of the undertaker “to borrow the ritual and sacred symbols of the minister . . . to provide an outward cover for what he is and does. His place of business is not a factory or an office but a ‘chapel’ or a ‘home’ ” (1959, p. 317).

This paper has shown that the “profanation” of the sacred, such as making money out of death, creates sources of strain and ambivalence in its practitioners which can be assuaged but not resolved by “sacralizing” the profanation. This hypothesis would be enriched by further investigation of the marketing of other similarly “sacred” products such as human organs or even the recently expanding business of mercenary mothers and their “black-market” babies, in which human life is routinely handled as a commodity to be exchanged, as Titmuss feared, for “dollars and pounds.”

¹⁸ Savings bank life insurance, e.g., which has offered low-price quality policies since 1907, has never been very successful. Interestingly, one of the few commercial failures of the Sears Roebuck catalogue business was an attempt in the 1930s to sell life insurance directly.

¹⁹ Parsons (1951, p. 445) suggests that even medical students need certain rites to justify their association to death, such as the ritualistic dissection of cadavers in the early stages of medical training.

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